

Kamal Kumar Yadav v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 18 April 2023 · Writ - C No. 11444 of 2023 · **Writ dismissed for suppression; vires plea declined**

HEADNOTE

Writ dismissed. The communication of 3 February 2023 was the department's reply to the petitioner's notice, which was not on record; non-annexure was treated as suppression of material facts. By supplementary affidavit he gave up the challenge to that reply, so the challenges to clauses of the U.P. Electricity Supply Code, 2005 and to the 27 June 2006 notification designating assessing officers were declined as academic.

FACTUAL SUMMARY

On 17 December 2022 the department raided Kamal Kumar Yadav's premises and recorded theft of electricity. An FIR (Case Crime No. 1421 of 2022) was lodged next day under Section 135 of the Electricity Act, 2003, with a provisional assessment notice. On 3 February 2023 it replied to his notice of 11 January 2023 that further action would follow only after deposit. He sought to quash that reply, clauses of the U.P. Electricity Supply Code, 2005 as ultra vires Section 181, and the 27 June 2006 notification designating assessing officers.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Dismissal without construing the Supply Code or Sections 135 and 181

HOLDING

The communication dated 3 February 2023 is the electricity department's reply, recording a raid on 17 December 2022, FIR Case Crime No. 1421 of 2022 under Section 135, a provisional assessment notice, and that further action would follow only after deposit. The Court could not ascertain the prayer that reply answered: the notice of 11 January 2023 was not annexed, the letter at page 30 was undated and was not identified in the writ as that notice, and the order also refers to a notice of 18 January 2023. Filing without those documents was suppression of material facts. By supplementary affidavit the petitioner gave up the challenge to the 3 February 2023 communication, so the challenges to clauses of the U.P. Electricity Supply Code, 2005 as ultra vires Section 181 and to the notification of 27 June 2006 designating assessing officers were academic and were declined. The petition was dismissed. ¶ 1-3

PRINCIPLE TAGS

procedural-listing-no-construction No clause of the Supply Code, and neither Section 135 nor Section 181, was construed. The writ was dismissed because the notice answered by the impugned reply was not on record, treated as suppression, and because the petitioner gave up that challenge, leaving the vires and notification prayers academic. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY CLAUSE OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 IS ULTRA VIRES SECTION 181 OF THE ELECTRICITY ACT, 2003

Declined as academic after the petitioner gave up the challenge to the 3 February 2023 communication. ¶ 1-3

NOT DECIDED — VALIDITY OF THE NOTIFICATION DATED 27 JUNE 2006 DESIGNATING ASSESSING OFFICERS

Declined as academic in the same breath. ¶ 1-3

NOT DECIDED — MERITS OF THE SECTION 135 ALLEGATION, THE PROVISIONAL ASSESSMENT, AND THE DEPARTMENTAL REPLY DATED 3 FEBRUARY 2023

The challenge to the reply was given up, and the notice it answered was not on record. ¶ 1-3

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.